

FREE GUIDE

The 5 HR Documents Every Growing Company Needs

Most companies with 10-50 employees are missing at least three of these.

If you have 10 or more employees and have been handling HR informally, this guide is for you. These five documents are the foundation of a legally protected and operationally consistent HR function. Without them you are exposed — often without knowing it.

1. Employee Handbook

High

Your employee handbook is your single most important HR document. It sets behavioral expectations, outlines company policies, and protects you legally when an employee says they did not know the rules.

- Code of conduct and behavioral expectations
- Anti-harassment and non-discrimination policies
- Attendance, PTO, and leave policies
- Progressive discipline process
- Complaint and grievance procedure

■ Most companies with under 50 employees either have no handbook or have one that has not been updated in years. An outdated handbook can work against you legally.

2. Employment Contracts and Offer Letters

High

Every employee should receive a signed offer letter before their start date. This document establishes the employment relationship, outlines compensation and classification, and includes at-will employment language.

- Compensation and pay schedule
- FLSA classification (exempt vs non-exempt)
- At-will employment statement
- Start date and position title
- Benefits summary

■ Verbal offers and informal agreements leave you exposed. A signed offer letter is your first line of legal protection.

Need help putting these in place?

HR Innovators builds the HR infrastructure growing companies need — without the full-time hire.

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3. I-9 Employment Eligibility Verification

High

Federal law requires a completed I-9 for every employee. Section 1 must be completed by the employee on or before their first day of work. Section 2 must be completed by the employer within 3 business days of the start date.

- Section 1 completed by employee on or before day one
- Section 2 completed by employer within 3 business days of start date
- Stored separately from personnel files
- Re-verification process in place for expiring work authorization
- Annual I-9 audit completed to catch errors and omissions

■ I-9 penalties range from \$281 to \$2,789 per violation. An I-9 audit is one of the first things we do with every new client.

4. Job Descriptions

Medium

A well-written job description is not just a hiring tool — it is a legal document that defines the role, sets performance expectations, and establishes FLSA classification for each position.

- Clear title and reporting structure
- Essential functions and responsibilities
- Required qualifications and experience
- FLSA classification (exempt vs non-exempt)
- Physical requirements if applicable

■ Missing or outdated job descriptions make performance management, terminations, and ADA accommodation decisions significantly more complicated and legally risky.

5. Performance Documentation

High

When a performance issue arises — and it will — your ability to address it, manage it, and if necessary terminate the employee depends entirely on what you documented along the way.

- Written warnings and disciplinary notices
- Performance improvement plans (PIPs)
- Documentation of verbal conversations
- Regular performance review records
- Consistent application across all employees

■ The single most common reason employers lose wrongful termination claims is poor or inconsistent documentation. Start documenting from day one.

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